

		Accordingly, the court GRANTS Defendant's motion as to George, Jack and John Saba's Requests for Admissions, set one. The court limits each Plaintiff to 75 requests for admissions (a maximum of 225 requests in total). <u>Sanctions</u> The court DENIES Defendant's and Plaintiffs' requests for sanctions. (See <i>Mattco Valley Forge v. Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1437 [court's discretion to deny sanctions upon mixed results].) Defendant shall give notice.
4	Nguyen v. Le	Defendant Holly Ngo's Special Motion to Strike Under CCP §425.16 is DENIED. Defendant's requests for judicial notice are GRANTED. Plaintiffs Thang Dinh Nguyen, Ph.D. and Boat People SOS, Inc.'s evidentiary objections to the Declaration of Defendant Holly Ngo are OVERRULED. Plaintiff's evidentiary objections to the Declarations of Le Xuan Khoa and Hanh Tran, which were submitted with Defendant's Reply brief, are SUSTAINED. <u>Standard for Anti-SLAPP Motion</u> Under the anti-SLAPP statute, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1); <i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678) "The moving party 'must establish that the challenged claim arises from activity protected by section 425.16'; if the moving party does so, 'the burden shifts' to the nonmoving party 'to demonstrate the merit of the claim by establishing a probability of success.' [Citation.]" (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "To succeed in opposing a special motion to strike, the nonmoving party must 'demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim.' [Citation.] '[C]laims with the requisite minimal merit may proceed.' [Citation.] The moving party prevails by 'defeat[ing]' the 'claim as a matter of law' [citation] in 'a summary-judgment-like procedure' [citation]." (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 679; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "If the plaintiff fails to meet that burden, the court will strike the claim." (<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.)